

**IN THE SUPREME COURT OF PAKISTAN**  
(Review Jurisdiction)

**PRESENT:**

Justice Malik Shahzad Ahmad Khan  
Justice Aqeel Ahmed Abbasi

**Crl.R.P. No.34/2026 in Crl.P. No.120/2026**

(For review of order dated 17.02.2026 passed by this Court in  
Crl.P. No.120/2026)

Directorate of Intelligence & Investigation-Inland Revenue, Karachi

***...Petitioner***

**Versus**

Arshad Aziz Abbasi and others

***...Respondents***

For the Petitioner: Mr. Umer Ijaz Gilani, ASC

For the Respondents: Nemo

Date of Hearing: 13.05.2026

**ORDER**

**AQEEL AHMED ABBASI, J.-** Through the instant criminal review petition the petitioner has sought review of Order dated 17.02.2026 passed by this Court on 17.02.2026 in Criminal Petition No.120/2026 whereby the above petition was converted into appeal and allowed alongwith C.M.A. No.68/2026 and the operation of the order of attachment of properties of the respondents dated 24.12.2025, passed by the Special Judge (Customs, Taxation, Anti-Smuggling-I), Karachi was ordered to be suspended till the final decision of Special Criminal Appeal No.01/2026 pending before the learned Single Judge of the High Court of Sindh at Karachi.

2. Learned counsel for the petitioner has submitted that the main ground for seeking review of the aforesaid Order is that the observations made by this Court in para-5 of the Order under review are based on the premise that prior to registration of FIR No.6/2025 no Show Cause Notice was issued to the respondents nor any proceedings were pending against them. Whereas, according to learned counsel, a notice was issued to the respondents on 16.12.2025 whereby the respondents were given an opportunity to explain their position, however, no response was received from the respondents, therefore, the FIR No.6/2025 was registered on

24.12.2025 and the Order of attachment of properties was passed by the learned Special Judge (Customs, Taxation, Anti-Smuggling-I), Karachi on the same date on the application filed by the petitioner under section 8 of the Anti-Money Laundering Act, 2010 (the "**Act of 2010**"). Learned counsel further submits that while passing the Order under review this Court has placed reliance in the case of Directorate of Intelligence & Investigation-FBR thr. its Director & others v Taj Internation (Pvt.) Ltd. & others (**PLD 2025 SC 633**) which, according to the learned counsel, pertains to the liability under the Sales Tax Act, 1990 (the "**Act of 1990**") whereas the proceedings in the instant case have been initiated under the Act of 2010 which is an independent law, hence its provisions cannot be read in to the Act of 1990. While concluding his submissions, learned counsel for the petitioner further submitted that since the proceedings before this Court have been concluded within a space of two short hearings, therefore, the petitioner could not place on record the relevant documents which have been attached alongwith instant criminal review petition which may kindly be taken into consideration and the Order under review may be reviewed in the terms as prayed for.

3. Heard the learned counsel for the petitioner, perused the contents of the instant criminal review petition alongwith its annexures. The main ground of review agitated through instant petition is misconceived as the Order passed by this Court on 17.02.2026 is not based merely on the fact that no opportunity was provided to the respondents before lodging of the above-mentioned FIR therefore, order of attachment under section 8 of the Act of 2010 was illegal, on the contrary detailed reasons have been given in para-5 of the Order under review. Whereas, other grounds, including scope and application of the Act of 2010 or the reported judgment of a Larger Bench of this Court in the case of Taj International (*supra*) have already been examined and deliberated upon in paras-7&8 of the Order under review, no ground, agitated through instant petition, has been left unattended while passing the Order under review. As regards the contention of the learned counsel that sufficient opportunity was not provided, the same is contrary to the fact and record of the case, as pursuant to the notices, issued by this Court, the petitioner had filed a detailed concise statement, however, the copy of the notices purportedly issued to the respondents on 16.12.2025, was not attached, nor even any reference was made in the reply to the petition.

It is settled legal position that any fresh document which was not made available during the course of hearing, when the Order was passed after hearing the parties, cannot be introduced subsequently to justify the ground for seeking review of the order, more particularly, when the Order under review in the instant case is based on certain legal principles settled by this Court in the judgments relied upon by this Court in the Order under review.

4. In view of hereinabove facts and circumstances, in our view, no apparent legal error in terms of Article 188 of the Constitution of Islamic Republic of Pakistan, 1973 has been pointed out by the learned counsel for the petitioner to justify review of Order passed by this Court on 17.02.2026. This criminal review petition is, therefore, dismissed.

**Islamabad:**

13.05.2026

APPROVED FOR REPORTING

*(Nasir Khan)*